

M/S Maa Durga Dhaba v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 7 March 2025 · 2025:AHC:33333-DB · Writ - C No. 33865 of 2024 · **Writ petition disposed of; the petitioner may appear before the Executive Engineer on 19.03.2025, and after compliance with Clause 6.8/8.2 of the U.P. Electricity Supply Code, 2005 a final assessment is to be passed within one month of that date**

HEADNOTE

On an allegation of theft of electricity, a provisional assessment dated 11.06.2024 was followed by a final assessment, letter no. 2338 VI. VI. KH. Tun. dated 29.08.2024, issued by respondent no. 3. An earlier writ, Writ-C No. 25203 of 2024, had on 05.08.2024 directed that the assessment be concluded preferably within six weeks and that supply be restored on deposit of 50 per cent of the provisional amount, without prejudice and subject to the final assessment. Before that direction was complied with, the final assessment was made and was challenged in this writ. The petitioner said the assessment was recalled on 07.11.2024 as mistakenly arrived at. The electricity department said the petitioner was asked to appear on 26.11.2024 and did not, so no final assessment could be made. The writ court did not decide the assessment. It directed that the petitioner may appear before the Executive Engineer on 19.03.2025 and that, on that date, after due compliance with Clause 6.8/8.2 of the U.P. Electricity Supply Code, 2005, a final assessment be passed within one month of the date so fixed. The Court did not decide whether the recall was valid, whether theft was proved, the quantum, or which of the two clauses governed.

FACTUAL SUMMARY

M/S Maa Durga Dhaba filed Writ-C No. 33865 of 2024 in the Allahabad High Court against the State of U.P. and two others to quash the final assessment dated 29 August 2024 issued by respondent no. 3. The electricity department alleged theft and passed a provisional assessment on 11 June 2024. In Writ-C No. 25203 of 2024 the Court, on 5 August 2024, directed that the assessment be concluded within six weeks, and that supply be restored on deposit of half the provisional amount, without prejudice and subject to the final assessment.

Before the petitioner complied with that order, the department made the 29 August 2024 assessment under challenge. On 22 October 2024 the Executive Engineer was directed to disclose on affidavit how Clause 6.8/8.2 of the U.P. Electricity Supply Code, 2005 had been followed. The petitioner said that assessment was recalled on 7 November 2024 as mistakenly made. The department said the petitioner was asked to appear on 26 November 2024 and did not, so no fresh assessment was made. The writ was disposed of on 7 March 2025.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Recalled final assessment — writ disposed by directing a fresh assessment only after compliance with Clause 6.8

QUESTION

Where both sides proceed on the footing that a challenged final assessment was recalled, and the licensee says no fresh assessment could be made because the consumer did not appear, will the writ court decide the demand or leave a final assessment to be passed after compliance with Clause 6.8?

HOLDING

The Court will not decide the demand. It recorded the petitioner's case that the final assessment dated 29.08.2024 was recalled on 07.11.2024 as mistakenly arrived at, and the department's case that the petitioner did not appear on 26.11.2024. It directed that the petitioner may appear before the Executive Engineer on 19.03.2025 and that, on that date, after due compliance with Clause 6.8/8.2 of the U.P. Electricity Supply Code, 2005, a final assessment be passed within one month of the date fixed. The writ was disposed of. ¶ 6-9

QUALIFIER

The appearance date and the one-month limit are fixed by this order. The Court did not quash or revive letter no. 2338 dated 29.08.2024, did not enforce the 50 per cent deposit or the restoration directed on 05.08.2024 in Writ-C No. 25203 of 2024, and did not separate Clause 6.8 from Clause 8.2.

FLAG Eight-page order-sheet. The operative order is 7.3.2025 (Siddhartha Varma and Dr. Yogendra Kumar Srivastava, JJ.), Neutral Citation No. 2025:AHC:33333-DB, internally numbered paras 1-9. Earlier sittings: 22.10.2024 (Manoj Kumar Gupta and Anish Kumar Gupta, JJ.), requiring the Executive Engineer's affidavit on how Clause 6.8/8.2 had been followed; 13.11.2024 (Anjani Kumar Mishra and Jayant Banerji, JJ.), taking that affidavit on record and rejecting a prayer to list the matter as fresh; and listings on 4.3.2025, 5.3.2025 and 6.3.2025 before the disposing bench. The Court used the composite 'Clause 6.8 / 8.2' and 'Clause 6.8/8.2' and named no sub-clause. The order quoted from Writ-C No. 25203 of 2024 styles the petitioner 'M/S Maa Durga Dhabad'. The letter number is printed as '2338 VI. VI. KH. Tun.' No precedent is cited.

HOLDING-UNIT · UP-2005::8.2

Theft allegation — fresh final assessment to comply with Clause 8.2 as well as Clause 6.8; theft not decided

QUESTION

On an allegation of theft of electricity, where the challenged final assessment is said to have been recalled, does the writ court require the fresh assessment to comply with Clause 8.2, and does it decide whether theft was proved?

HOLDING

It requires compliance and does not decide theft. The department's allegation was that the petitioner was indulging in theft of electricity, and a provisional assessment had been passed on 11.06.2024. On 22.10.2024 the Court had called for disclosure of how the procedure under Clause 6.8/8.2 had been followed in the final assessment. On 7.3.2025 it directed that the final assessment be passed after due compliance with those clauses. It made no finding that theft was established and did not apply any sub-clause of Clause 8.2. ¶ 3, 5, 8

QUALIFIER

Clause 8.2 is cited only in the composite phrase with Clause 6.8. The order does not record an inspection report, compounding, or a criminal case.

FLAG Paras are those of the 7.3.2025 order. The 22.10.2024 call for disclosure of compliance with Clause 6.8/8.2 is para 2 of that order.

PRINCIPLE TAGS

6.8-procedure-mandatory The disposing order requires the final assessment to be passed only after due compliance with Clause 6.8, which the Court pairs with Clause 8.2. It does not set out the steps inside Clause 6.8 or find that the recalled assessment had breached them. ¶ 5, 8

opportunity-before-final-assessment After recording that no final assessment could be made because the petitioner had not appeared on 26.11.2024, the Court fixed 19.03.2025 for the petitioner to appear before the Executive Engineer and required the final assessment to follow compliance with Clause 6.8/8.2. ¶ 7-8

apply-under-supply-code-consider-in-accordance-with-law The prayer to quash the 29.08.2024 assessment was neither granted nor refused. The writ was disposed of by leaving a final assessment to be passed, after the petitioner's appearance, in compliance with Clause 6.8/8.2 within one month of 19.03.2025. ¶ 2, 8-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND QUANTUM OF THE ASSESSMENT, AND WHETHER THE ORDER DATED 29.08.2024 WAS VALIDLY RECALLED ON 07.11.2024

Both sides proceeded on the footing that the assessment had been recalled. The Court said 'Be that as it may' and directed a fresh assessment. It did not quash, affirm, or examine the recall. ¶ 6-8

NOT DECIDED — WHETHER NON-APPEARANCE ON 26.11.2024 JUSTIFIED THE DEPARTMENT IN NOT PASSING A FINAL ASSESSMENT

Recorded as the department's submission. Not adjudicated. ¶ 7

NOT DECIDED — WHETHER THEFT OF ELECTRICITY WAS ESTABLISHED, AND WHETHER CLAUSE 6.8 OR CLAUSE 8.2 WAS THE GOVERNING PROCEDURE

The theft allegation is recited. The Court required compliance with both clauses and did not construe either. ¶ 3, 5, 8

NOT DECIDED — RESTORATION OF SUPPLY AND THE DEPOSIT OF 50 PER CENT OF THE PROVISIONAL AMOUNT DIRECTED ON 05.08.2024 IN WRIT-C NO. 25203 OF 2024

The earlier order is quoted. This disposal does not repeat, modify, or enforce those directions. ¶ 3-4, 8-9

NOT DECIDED — CONTENTS OF THE EXECUTIVE ENGINEER'S PERSONAL AFFIDAVIT, AND WHETHER THE RECALLED ASSESSMENT HAD FOLLOWED CLAUSE 6.8/8.2

The affidavit was directed on 22.10.2024 and taken on record on 13.11.2024. The 7.3.2025 order does not discuss it. ¶ 5

SCJ-3318 · M/S Maa Durga Dhaba v. State of U.P. & 2 Others · 2025:AHC:33333-DB · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.